

CYPRUS REPUBLIC

OFFICE OF THE COMMISSIONER FOR PERSONAL DATA PROTECTION

COMMISSIONER

File No.: 11.17.001.012.114

File No.: 11.17.001.012.277

Tel. No.: 22 818456

Fax No.: 22 304565

16 December 2024

XXXXXX

Email: XXXXX

Registered and by Electronic Mail

DECISION

Subject: Complaints from XXXXX and XXXXX against XXXXX

I have been instructed to refer to the complaints submitted to our Office, on XXXXX, by Ms. XXXXX, and on XXXXX by Ms. XXXXX, daughter of Ms. XXXXX, regarding the publication of their personal data

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without their prior consent, in your book titled "XXXXXXXXXXXXX", with ISBN number: XXXXXXXX, published in 2023, and in your response email dated XXXXXXXX 2024, and I wish to inform you of the following:

Claims of the Complainants

2. Ms. XXXXX claims that you published her personal information in your book without her consent, which includes her full name, place and date of birth, a student photograph of hers, details about her family status, including information about her children, as well as her area of permanent residence. Furthermore, she states that during the presentation of the book by you in the village of XXXXX, prior to its publication, you displayed her photograph. When she requested you to return the photograph, as she claims, you refused to do so.

2.1. Ms. XXXXX states that, without her consent, you published in your book information regarding the occurrence of her two marriages and the children she had from each marriage. These are personal data that, as she states, are not widely known.

2.2. Both complainants assert that they never granted you permission to publish the above information in your book and that they do not know the source from which the specific data was obtained.

Your Claims

3. In your email, you state that since 20XX you have held the position of President of XXXXXXXX (hereinafter referred to as the "Association") and of the "XXXXXXXXX" Association of Letymbou (hereinafter referred to as the "Club"). Among other things, you decided as part of the activities of the Club to organize a photography exhibition at the cultural center of the village and to create the genealogical tree of the community of XXXXXXXX.

3.1. As you mention, the Club submitted a request through the District Officer XXXXX to the Ministry of Interior for access to the birth registry of the community of XXXXXXXX, which contains information about births from 1882 to 1960. The request was approved, and the Club obtained all the details of individuals born within this period, specifically the date of birth, full name, and names of the father and mother.

- 3.2. The photographs of the individuals included in the photography exhibition were provided to you either by the individuals themselves or by their relatives.
- 3.3. As you state, the biographical details as well as the place of permanent residence of Ms. XXXXX are known to all the villagers, while the details of her daughter, Ms. XXXXX, were provided to you by her relatives, without specifying which relatives, while you simultaneously note that you do not know her personally.
- 3.4. In your email, you state that you proceeded to write and publish personally and at your own expense 30 copies of the book "XXXXXXXXXXXX", believing that you were serving the village and its residents.
- 3.5. The book includes references to 110 families and a total of more than 3,000 individuals. You note that you did not know how you could bring the book to the attention of the interested parties before its publication, in order to inform them and obtain their prior consent.
- 3.6. Finally, you refer to the complaint submitted to our Office last year on XX/XX/2023 by Messrs. XXXXX and XXXXX for exactly the same reason, namely the publication of their personal data in your book without the required prior consent.

Legal Analysis:

4. The following are the Articles and Recitals of the GDPR that will form the legal basis for the complaint in question:

Article 57 of the GDPR:

"1. Without prejudice to the other tasks laid down in this Regulation, each supervisory authority in its territory,

(a) monitors and enforces the application of this Regulation, [...]

(f) handles complaints lodged by the data subject [...]"

Article 4 of the GDPR:

"1) 'personal data': any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person,

2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use,

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the sharing through transmission, the dissemination or any other form of provision, the association or combination, the restriction, the deletion or destruction, [...]

7) "data controller": the natural or legal person, the public authority, the service or other body that, alone or jointly with others, determines the purposes and means of processing personal data; [...]"

Article 5 of the GDPR

"1. Personal data:

a) shall be processed lawfully and fairly in a transparent manner in relation to the data subject ("lawfulness, fairness, and transparency"), [...]

b) are collected for specified, explicit, and legitimate purposes and shall not be further processed in a manner that is incompatible with those purposes ("purpose limitation") [...]

c) are adequate, relevant, and limited to what is necessary for the purposes for which they are processed ("data minimization"), [...]

2. The data controller shall be responsible for, and be able to demonstrate compliance with, paragraph 1 ("accountability").

Article 6 of the GDPR:

"1. Processing shall be lawful only if and to the extent that at least one of the following applies:

b) processing is necessary for the performance of a contract to which the data subject is a party or in order to take steps at the request of the data subject prior to entering into a contract,

c) processing is necessary for compliance with a legal obligation to which the data controller is subject,

- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person,
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller,
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, especially if the data subject is a child”.

Recital 42 of the GDPR:

“(42) Where processing is based on the consent of the data subject, the data controller should be able to demonstrate that the data subject has consented to the processing operation. [...]”.

Recital 50 of the GDPR:

“(50) Processing of personal data for purposes other than those for which the data were originally collected should be allowed only if the processing is compatible with the purposes for which the personal data were originally collected” [...].

Article 58(2) of the GDPR:

“Each supervisory authority shall have the following corrective powers:

- f) to impose a temporary or definitive limitation, including a ban on processing” [...].

Reasoning:

5. The request for access to the civil registry was submitted by the Association for the purpose of organizing a photography exhibition within the framework of the cultural activities of the Association, and not by you personally for the writing of the said book.

5.1. The use of the personal data contained in the civil registry for the writing of the book is considered a separate processing operation and makes you an independent Data Controller, according to the provisions of the General Data Protection Regulation (GDPR). Therefore, you are subject to all obligations arising from the Regulation for Data Controllers, including the principle of accountability. According to this principle, you are obliged to demonstrate your compliance with the GDPR, ensuring that the data is processed lawfully, transparently, and in accordance with the purposes for which it was collected.

5.2. We also note that for Ms. XXXXXXXX you published information about her and her two children which are not contained in the civil registry.

5.3. Furthermore, we reiterate the position of our Office as stated in our letter dated XX/XX/2023, specifically that any collection and publication of data must be based on one of the legal bases and in this case, on the prior consent of the individuals concerned. Ignorance of the law is not an excuse or defense.

Conclusion:

6. In light of all the elements, as they have been presented before me, and based on the powers conferred upon me by the Regulation, I issue an Order that you shall not proceed with the issuance of further copies of the book “XXXXXXXXXX”, with unique ISBN number: XXXXXXXXXXXXXXXX, published in 2023, as well as not to publish another book with similar content without the prior consent of the individuals who may be affected.

6.1. You are also instructed to remove all information concerning Ms. XXXXXXXX and Ms. XXXXXXXX from the said book and to inform both them and our Office in writing when you do so.

6.2. We note that, in the event of non-compliance with the above or the submission of a new complaint to our Office regarding the same issue, this will be treated more strictly.

Eirini Loizidou Nikolaidou

Commissioner for Personal Data Protection